BOLI
Bureau of Labor and Industries

WORKPLACE BULLYING

Bullying harms employees, employers, and businesses by creating a disrespectful, unhealthful, and nonproductive work environment. Workplace bullying generally is not illegal in Oregon, however, it is harmful and in some cases can lead to lawsuits based on discrimination. Oregon and federal laws protect individuals who are harassed and discriminated against because of their race, national origin, gender, veteran status, or other protected class status.

What is workplace bullying?

Workplace bullying is a pattern of repeated mistreatment that harms, intimidates, undermines, offends, degrades or humiliates an employee. Bullying situations may involve:

- Bosses or supervisors against their subordinates
- Employees against their peers
- A group of co-workers targeting another worker (mobbing)
- An organization or institution when bullying is entrenched and becomes accepted as part of the workplace culture
- A third party such as a client or customer who bullies an employee

Managers and supervisors who have high expectations, present a tough demeanor, identify areas requiring improved performance, or impose discipline within established workplace guidelines are not engaging in bullying as long as their actions are carried out in a respectful and fair manner.

Examples of situations and actions commonly considered bullying:

Abusive Work Environment: The bully makes physical or verbal threats against the target, insults, or publicly humiliates them. The bully spreads malicious untruthful information or gossip to intimidate or turn others against the target.

Undermining and Discrediting: The bully makes false accusations of incompetence, blames target for others' errors, and/or takes credit for target's successes at work.

Retaliation: The target experiences intentional exclusion and ostracism after raising concerns. This may also include retaliatory loss of job opportunities or favored work activities and schedules when not related

What can I do if I'm being bullied?

Regain control! Bullying is about control, and therefore it has nothing to do with your performance. Here are some options for what you can do:

- Check if your organization has a code of conduct or workplace violence program that addresses intimidation or harassment at work.
- Carefully document bullying incidents (dates, times, places, what was done or said and who was present). Keep documents that contradict the bully's accusations, such as timesheets, emails, and audit reports. Assess whether changes in your own behavior could help resolve the situation.
- Set boundaries with the bully. If safe to do so, describe the offensive behavior and declare that you expect it to stop. The bully is likely to deny and even misconstrue your accusations initially. However, their behavior may improve over time. Having another person present as a witness and remaining calm can be helpful and strengthen your position if the bully responds negatively.
- Do not retaliate or escalate the behavior, because you may be blamed or subject to discipline.
- Report the problem to your supervisor, another manager, or to another "higher-up" at work. This is where the documentation will be helpful to demonstrate that you did not contribute to the situation.
- Find emotional support from trusted people at work, outside of work and at home.

Why it Matters

Workplace bullying often involves an abuse or misuse of power. Bullying behavior creates feelings of defenselessness and injustice in the target and undermines an individual's right to dignity at work. The targets of bullying may suffer from physical and mental health problems that can last for many years. Bullying can also reduce productivity, decrease retention, and increase employer health costs.

Targets of bullying frequently experience one or more of these significant impacts:

- Stress, depression, and sleep disorders
- Reduced self-esteem
- Increased physical illness and sick days
- Increased accidents and injuries
- Lack of focus and loss of effectiveness

Bullying can be costly for organizations too:

- Distraction and loss of productivity by the target, the bully, and bystanders
- Poor workplace morale and loss of reputation
- Possible investigations, grievances, and lawsuits
- Inability to recruit and retain good staff
- Increased medical costs and attendance issues

What can an employer do?

First and foremost, employers must recognize and prevent workplace bullying by creating a respectful workplace culture. If you are an employer, supervisor, or manager who is aware of bullying and do not take action, then you are accepting a share of the responsibility for future abuses. Take steps to:

- Develop a respectful workplace code of conduct that specifically prohibits bullying behavior and identifies consequences for employees who engage in bullying.
- Establish a culture where supervisors are expected to treat employees fairly and respectfully and engage in informal conflict resolution.
- Provide opportunities for confidential reporting and for mediated conflict resolution when needed.
- Educate all employees about respectful professional behavior and the company code of conduct.
- Take claims of bullying seriously and consistently enforce your workplace code of conduct.

For more information, visit our website at www.oregon.gov/boli, or contact us at 971-673-0761 or mailb@boli.state.or.us